

Warsaw, December 14, 2022

Decision

DS.523.3215.2022

Based on Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2022, item 2000) and Article 5(1)(c), Article 6(1), and Article 58(2)(b) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (OJ EU L 119 of 05.04.2016, p. 1, OJ EU L 127 of 23.05.2018, p. 2, and OJ EU L 74 of 04.03.2021, p. 35), after conducting administrative proceedings regarding the complaint of Ms. M. W., residing in W., concerning irregularities in the processing of her personal data by K. P.-F. "P...." Sp. z o.o. based in W., consisting of processing after the termination of the assignment of her personal data assigned to her work email account, i.e.: first name, last name, image, and their use in contacts with contractors, the President of the Personal Data Protection Office issues a warning to K. P.-F. "P...." Sp. z o.o. based in W., for violating Article 5(1)(c) and Article 6(1) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (OJ EU L 119 of 05.04.2016, p. 1, OJ EU L 127 of 23.05.2018, p. 2, and OJ EU L 74 of 04.03.2021, p. 35), consisting of processing after the termination of the assignment of personal data of Ms. M. W., residing in W., assigned to her named email account, and the use of her personal data in the scope of first name, last name, and image in contacts with contractors via email.

JUSTIFICATION

The Personal Data Protection Office received a complaint from Ms. M. W., residing in W. (...), hereinafter referred to as the Complainant, regarding irregularities in the processing of her personal data by K. P.-F. "P..." Sp. z o.o. based in W., hereinafter referred to as the Company, consisting of processing after the termination of the assignment of her personal data assigned to her work email account, i.e.: first name, last name, image, and their use in contacts with contractors.

During the administrative proceedings, the President of the Personal Data Protection Office established the following factual state. The Complainant collaborated with the Company from (...).03.2021 to (...).06.2021 based on a mandate contract (evidence: letter from the Complainant dated (...).05.2022 with attachments; letter from the Company dated (...).07.2022 with attachments).

During the collaboration, the Complainant was assigned an individual email account for contacts with the Company's contractors. The footer of the email template contained the Complainant's personal data, i.e.: first name, last name, job title, and a photo with her image (evidence: letter from the Complainant dated (...).05.2022 with attachments; letter from the Company dated (...).07.2022 with attachments).

After the termination of her collaboration with the Company, the Complainant obtained information that her individual email address containing the personal data indicated in the email footer was actively used by the Company for contacts with contractors, including Mr. K. D. P. A. Ł., who provided payroll and accounting services, and with the client Mr. S. P. (evidence: letter from the Complainant dated (...).05.2022 with attachments; letter from the Company dated (...).07.2022 with attachments).

The Company indicated that the basis for processing the Complainant's personal data after the termination of the collaboration in the contested scope is the legitimate interest of the Company. The Company explained that due to the sudden resignation of the Complainant from the assignment, it was forced to immediately replace the contractor. The Company used the individual email account containing the Complainant's personal data to avoid losing the ability to contact contractors and former clients and to maintain communication fluidity. The Company informed that the client Mr. S. P. contacted the Complainant directly to obtain a settlement for a one-time matter handled by the Company, therefore it was justified for the requested settlement to be sent from her email account. Similarly, K. D. P. A. Ł., in accordance with the Company's security policy, had information about the

individuals who could exclusively contact Mr. A. Ł. regarding financial matters. K. D. P. A. Ł. had information at that time that the Complainant was responsible for contact on behalf of the Company. The Company emphasized that the processing was aimed at a specific, clear, and legally justified purpose, and the individual email account containing the Complainant's personal data was not used to acquire new clients (evidence: letter from the Company dated (...).07.2022 with attachments).

The Company explained that the individual email account containing the Complainant's personal data was used by the Company for approximately 2 weeks after the termination of the collaboration with the Complainant, i.e.: until the necessary information was assigned and transferred to the person taking over the Complainant's duties (evidence: letter from the Company dated (...).07.2022 with attachments).

the continuity of business operations. The Company argued that this processing was necessary to protect its legally justified interests, specifically the maintenance of business relationships and effective communication with its partners.

In light of the above, the President of the Personal Data Protection Office assessed the situation as follows. The Company must demonstrate that the processing of the Complainant's personal data is necessary for the realization of its legally justified interests. It is not sufficient for such interests to merely exist; their realization must require the processing of personal data. As with Article 6(1)(b) of the GDPR, there must also be a direct link between the realization of the legally justified interest and the need to process personal data.

At the same time, it should be noted that the existence of a legally justified interest is not sufficient for the application of this provision; it is also necessary to weigh two legally protected goods, namely the legally justified interest of the administrator or third party on one side and the interests, fundamental rights, and freedoms of the data subject on the other. Therefore, it must be assessed whether the realization of the goal resulting from the legally justified interest of the administrator or third party may infringe upon the interests, fundamental rights, or freedoms of the data subject that require the protection of personal data. The interests of the data subject are a subjective category concerning a specific individual. Meanwhile, fundamental rights and freedoms should be sought in the Constitution of the Republic of Poland, the Charter of Fundamental Rights of the European Union, and the European Convention on Human Rights. Such rights will particularly include the right to a good name, dignity, or reputation.

In this case, the Company indicated that it processed the Complainant's personal data to prevent the loss of the ability to contact the Company's contractors and the necessity of maintaining the continuity of business operations.

****Liquidity of Contact.**** While the Company indicated the existence of a legitimate economic interest on its part, it completely failed to demonstrate the necessity of processing the Complainant's personal data for the purpose of realizing that interest. It should be noted that the termination of cooperation with the Complainant as a contractor of the Company, even if sudden, in no way affects the legal functioning of the Company in terms of managing its affairs and external representation. The Company has bodies, including a management board, whose composition is disclosed in the National Court Register, which allows each contractor to easily verify the authority of the person contacting them on behalf of the Company. It also did not escape the attention of the authority when considering this matter that the Company had access to the list of contacts with whom the Complainant conducted email correspondence, as well as the full content of that correspondence, which was entirely sufficient for the smooth continuation of contacts with the Company's contractors.

In light of the above, in the opinion of the President of the Personal Data Protection Office (UODO), the Company did not meet the conditions specified in Article 6(1)(f) of the GDPR that would authorize it to process the Complainant's data in the contested scope. At the same time, it should be noted that the Company did not demonstrate, nor did the authority find, the existence of any other grounds listed in Article 6(1) of the GDPR, based on which the Company could lawfully process the personal data of the Complainant assigned to its individual email inbox.

Furthermore, it must be pointed out that all forms of personal data processing must be carried out in accordance with the principles outlined in Article 5(1) of the GDPR. Personal data should be processed, among other things, lawfully, for specified purposes, adequate, relevant, and limited to what is necessary for the purposes for which they are processed ("data minimization"). In this regard, the President of the Personal Data Protection Office shares the position that even when specific data corresponds to the purpose for which it is collected and is adequate for that purpose, it does not follow that it may be processed, including being made available to other entities (see also: J. Barta, P. Fajgielski, R. Markiewicz, Personal Data Protection, Commentary, Kraków 2007, 4th ed., p. 510).

The assessment made by the President of the UODO in each case serves to examine the justification for directing a mandate to a specific entity corresponding to the provisions of Article 58(2) of the GDPR aimed at restoring compliance with the law in the data processing process - it is therefore justified and necessary only to the extent that irregularities in the personal data processing exist. In the present case, the disclosure of the Complainant's personal data was not based on the grounds specified in Article 6(1) of the GDPR and was not in accordance with the principles set out in Article 5(1)(c) of the GDPR, which constitutes a violation of these personal data protection provisions, and therefore the President of the UODO issues a reprimand to the Company.

In this factual and legal situation, the President of the Personal Data Protection Office ruled as stated in the operative part.

****INSTRUCTION:**** The decision is final. Pursuant to Article 7(2) of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws of 2019, item 1781) and in connection with Article 13 § 2, Article 53 § 1, and Article 54 of the Act of August 30, 2002, on Proceedings Before Administrative Courts (Journal of Laws 2022, item 329, as amended), the party has the right to file a complaint with the Provincial Administrative Court in Warsaw within 30 days from the date of delivery of this decision, through the President of the Personal Data Protection Office (address: Personal Data Protection Office, ul. Stawki 2, 00-193 Warsaw). The fee for the complaint is 200 zlotys. The party has the right to apply for legal aid, including exemption from court fees.

****Print Article****

****Metadata****

****Entity providing the information:**** Complaints Department

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